

# Foreign Exchange Management (Export and Import of Currency) Regulations, 2015

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UNION OF INDIA

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Foreign Exchange Management (Export and Import of Currency) Regulations, 2015

Rule FOREIGN-EXCHANGE-MANAGEMENT-EXPORT-AND-IMPORT-OF-CURRENCY-REGULATIONS-2015 of 2015

Published on 29 December 2015

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Foreign Exchange Management (Export and Import of Currency) Regulations, 2015

Published vide Notification No. G.S.R. 1004(E), dated 29th December, 2015, No. FEMA 6 (R)/RB-2015

Last Updated 28th February, 2019

Reserve Bank of India

(Foreign Exchange Department)

(Central Office)

G.S.R. 1004(E). - In exercise of the powers conferred by clause (g) of sub-section (3) of Section 6, sub-section (2) of Section 47 of the Foreign Exchange Management Act, 1999 (

42 of 1999

), and in supersession of Notification No. FEMA 6/2000-RB dated May 3, 2000, as amended from time to time, the Reserve Bank makes the following regulations for export from and import into, India of currency or currency notes, namely :-

1.

Short title & commencement.

- (i) These regulations may be called as Foreign Exchange Management (Export and Import of Currency) Regulations, 2015.

(ii)

They shall come into effect on from the date of their publication in the Official Gazette.

2.

Definitions.

- In these regulations, unless the context requires otherwise, -

(i)

'Act' means Foreign Exchange Management Act, 1999 (42 of 1999

);

(ii)

the words and expressions used and not defined in these regulations but defined in the Act have meanings respectively assigned to them in the Act.

3.

Export and Import of Indian currency and currency notes.

(1)

Save as otherwise provided in these regulations, any person resident in India,

(a)

may take outside India (other than to Nepal and Bhutan) currency notes of Government of India and Reserve Bank of India notes up to an amount not exceeding Rs. 25000/- (Rupees Twenty Five Thousand Only) per person or such amount and subject to such conditions as notified by Reserve Bank of India from time to time;

(b)

may take or send outside India (other than to Nepal and Bhutan) commemorative coins not exceeding two coins each.

Explanation. - 'Commemorative Coin' includes coin issued by Government of India Mint to commemorate any specific occasion or event and expressed in Indian currency.

(c)

who had gone out of India on a temporary visit, may bring into India at the time of his return from any place outside India (other than from Nepal and Bhutan), currency notes of Government of India and Reserve Bank of India notes up to an amount not exceeding Rs. 25,000/- per person or such amount and subject to such conditions as notified by Reserve Bank of India from time to time.

Without prejudice to the provisions of sub-regulation (1), Reserve Bank may, on application made to it and on being satisfied that it is necessary to do so, allow a person to take or send out of India or bring into India currency notes of Government of India and/or of Reserve Bank of India subject to such terms and conditions as the Bank may stipulate.

(2)

Save as otherwise provided in these regulations, any person resident outside India, not being a citizen of Pakistan or Bangladesh, and visiting India,

(a)

may take outside India currency notes of Government of India and Reserve Bank of India notes up to an amount not exceeding Rs. 25000 (Rupees Twenty Five Thousand Only) per person or such other amount and subject to such conditions as notified by Reserve Bank of India from time to time.

(b)

may bring into India currency notes of Government of India and Reserve Bank of India notes up to an amount not exceeding Rs. 25000 (Rupees Twenty Five Thousand Only) per person or such other amount and subject to such conditions as notified by Reserve Bank of India from time to time.

4.

Prohibition on Export of Indian coins.

- No person shall take or send out of India the Indian coins which are covered by the Antique and Art Treasure Act, 1972.

5.

Prohibition on export and import of foreign currency.

- Except as otherwise provided in these regulations, no person shall, without the general or special permission of the Reserve Bank, export or send out of India, or import or bring into India, any foreign currency.

6.

Import of foreign exchange into India.

- A person may -

(a)

send into India without limit foreign exchange in any form other than currency notes, bank notes and travellers cheques;

(b)

bring into India from any place outside India without limit foreign exchange (other than unissued notes),

provided that bringing of foreign exchange into India under clause (b) shall be subject to the condition that such person makes, on arrival in India, a declaration to the Custom authorities in Currency Declaration Form (CDF) annexed to these Regulations;

provided further that it shall not be necessary to make such declaration where the aggregate value of the foreign exchange in the form of currency notes, bank notes or traveller's cheques brought in by such person at any one time does not exceed US\$10,000 (US Dollars ten thousands) or its equivalent and/or the aggregate value of foreign currency notes brought in by such person at any one time does not exceed US\$ 5,000 (US Dollars five thousands) or its equivalent.

7.

Export of foreign exchange and currency notes.

(1)

An authorised person may send out of India foreign currency acquired in normal course of business.

(2)

Any person may take or send out of India, -

(a)

Cheques drawn on foreign currency account maintained in accordance with Foreign Exchange Management (Foreign Currency Accounts by a person resident in India) Regulations, 2000;

(b)

foreign exchange obtained by him by drawal from an authorised person in accordance with the provisions of the Act or the rules or regulations or directions made or issued thereunder ;

(c)

currency in the safes of vessels or aircrafts which has been brought into India or which has been taken on board a vessel or aircraft with the permission of the Reserve Bank ;

(3)

Any person may take out of India, -

(a)

foreign exchange possessed by him in accordance with the Foreign Exchange Management (Possession and Retention of Foreign Currency) Regulations, 2015;

(b)

unspent foreign exchange brought back by him to India while returning from travel abroad and retained in accordance with the Foreign Exchange Management (Possession and Retention of Foreign Currency) Regulations, 2015;

(4)

Any person resident outside India may take out of India unspent foreign exchange not exceeding the amount brought in by him and declared in accordance with the proviso to clause (b) of Regulation 6, on his arrival in India.

8.

Export and import of currency to or from Nepal and Bhutan.

- Notwithstanding anything contained in these regulations, a person may -

(1)

[ take or send out of India to Nepal or Bhutan, currency notes of Government of India and Reserve Bank of India notes (other than notes of denominations of above Rs.100 in either case), provided that an individual travelling from India to Nepal or Bhutan can carry Reserve Bank of India notes of Mahatma Gandhi (new) Series of denominations Rs. 200/- and/or Rs. 500/- up to a total limit of Rs. 25,000;]

[Substituted by Notification No. G.S.R. 151(E), dated 26.2.2019 (w.e.f. 29.12.2015).]

(2)

bring into India from Nepal or Bhutan, currency notes of Government of India and Reserve Bank of India notes (other than notes of denominations of above Rs. 100 in either case);

(3)

take out of India to Nepal or Bhutan, or bring into India from Nepal or Bhutan, currency notes being the currency of Nepal or Bhutan.

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